

Session and Chapter.	Short Title.	Extent of Repeal.
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	Sections twenty-five, twenty-nine, and thirty, in section thirty-one the words from "Provided that" to the end of the section, in section thirty-three the words "whom the judge shall be empowered to appoint and" and the words from "provided that" to the words "dismissed by the judge," in section thirty-four the words "by the successor of the" "high bailiff or by the judge" and the words from "and such wages" to the end of the section, sections thirty-six, thirty-seven, thirty-eight and forty-four to forty seven, and in section one hundred and fifty-four the words from "and the brokers" to the end of the section.
3 Edw. 7. c. 42.	The County Courts Act, 1903.	Section six.
9 & 10 Geo. 5 c. 73.	The County Courts Act, 1919.	Section fifteen from the beginning to the words "court and".

CHAPTER 18.

An Act to prevent unreasonable eviction of tenants.
[14th July 1924.]

BE it enacted¹ by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Paragraphs (iv) and (v) of subsection (1) of the section which by section four of the Rent and Mortgage Interest Restrictions Act, 1923, is substituted for section five of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920, are hereby repealed as

Amendment
of 13 & 14
Geo. 5. c. 32.
s. 4. ss. (1).
10 & 11
Geo. 5. c. 17.

respects pending as well as future proceedings, and the following paragraph shall be substituted therefor :

- (iv) Where the dwelling-house is reasonably required by the landlord (not being a landlord who has become landlord by purchasing the dwelling-house or any interest therein after the fifth day of May, nineteen hundred and twenty-four) for occupation as a residence for himself or for any son or daughter of his over eighteen years of age and the court is satisfied having regard to all the circumstances of the case, including any alternative accommodation available for the landlord or the tenant, that greater hardship would be caused by refusing to grant an order or judgment for possession than by granting it.

Application
of Act to
pending
proceedings.

2.—(1) Where any order or judgment has been made or given before the passing of this Act but not executed, and in the opinion of the court the order or judgment would not have been made or given if this Act had been in force at the time when such order or judgment was made or given, the court, on application by the tenant, may rescind or vary the order or judgment in such manner and subject to such conditions as the court shall think fit for the purpose of giving effect to this Act.

(2) Where a landlord has, on or after the fifteenth day of April, nineteen hundred and twenty-four, taken possession of a dwelling-house under a judgment or order so rescinded as aforesaid, such possession shall not in any case exclude the dwelling-house from the operation of the Rent and Mortgage Interest (Restrictions) Acts, 1920 and 1923.

Short title.

3. This Act may be cited as the Prevention of Eviction Act, 1924, and shall be construed as one with the Rent and Mortgage Interest (Restrictions) Acts, 1920 and 1923, and those Acts and this Act may be cited together as the Rent and Mortgage Interest (Restrictions) Acts, 1920 to 1924.

